AGREEMENT FOR EVENT SUPPORT SERVICES

This Agreement for Event Support Services ("**Agreement**") is entered into at ____ on _____, 2016 by and between**:**

BENNETT, COLEMAN AND COMPANY LIMITED, a company incorporated under the Companies Act, 1956, having its registered office at The Times of India Building, Dr. D.N. Road, Mumbai 400 001, CIN No. U22120MH1913PLC000391 hereinafter referred to as the 'BCCL' (which expression shall unless it be repugnant to the context or meaning thereof mean and include its successors and permitted assigns) of the ONE PART

AND

_____, a company incorporated under the Companies Act, 1956, having its registered office at _____, CIN No. _____ hereinafter referred to as the 'VENDOR' (which expression shall unless it be repugnant to the context or meaning thereof mean and include its successors and permitted assigns) of the OTHER PART

BCCL and VENDOR are hereinafter individually called the "**Party**" and collectively referred to as "**Parties**".

WHEREAS:

A. BCCL is the films' entertainment arm of the Times of India group and is a subsidiary of Bennett Coleman & Co. Limited.

B. BCCL wishes to organize a _____ in _____, to felicitate the performances of _____ and other performers (the "**Performers**") (hereinafter cumulatively referred to as the "**Event**"). The Event shall be held on _____.

C. VENDOR is an event management firm based in _____, and has the requisite expertise, licenses and permissions from government to carry out the activities of organizing / managing film awards, fashion shows, musical concerts, fashion show(s), live theatrical productions, to enter in to contracts with government and semi-governmental bodies, other event management firms, ticketing agents and parties contemplated hereunder.

D. BCCL is desirous of engaging VENDOR for provision of Services (*as defined hereinafter*) in connection with the Event as set forth hereinafter and VENDOR has agreed to provide the same. VENDOR has agreed subject to the terms and conditions of this Agreement to act as a single window for BCCL for organizing the Event for seeking necessary Approvals and *inter alia* engaging other contractor including vendors for availing various services in relation to the Event.

E. The Parties are now desirous of entering into this Agreement to specify the scope of Services and the commercial and other terms and conditions on which such Services shall be provided by VENDOR to BCCL.

NOW, THEREFORE, in consideration of the mutual agreements, covenants, representations and warranties set forth in this Agreement, and for other good and valuable consideration, the receipt and sufficiency of which is acknowledged by the Parties, the Parties hereby agree as follows the above Preambles constituting an integral and inseparable part of this Agreement:

1) **DEFINITIONS AND INTERPRETATION**

Unless the contrary intention appears and/or the context otherwise requires, in addition to the terms defined elsewhere in this Agreement, the definitions listed in **Schedule 1 Part A** shall apply throughout this Agreement. The interpretation and/or construction of this Agreement shall be in accordance with the rules of interpretation annexed and marked **Schedule 1 Part B**. Each Schedule attached to this Agreement shall constitute and

integral and inseparable part of this Agreement.

2) **APPOINTMENT AND SERVICES**

a) BCCL hereby agrees to engage VENDOR and VENDOR agrees to provide to BCCL, the services as set forth in **Schedule 2** hereto (cumulatively referred to as the "**Services**"). Subject to the terms hereof, VENDOR shall provide the Services on the terms and conditions set out in this Agreement and the relevant Schedule.

b) VENDOR recognizes that the brands 'Times of India', 'Times of India Film Awards', 'TOIFA' and any other brand name containing permutations and combinations of the aforesaid brand names are well reputed globally and therefore agrees to render the Services, in a first class manner and consistent with the global standards in the event management industry and VENDOR also agrees to comply with the service level requirements set out in **Schedule 3** hereto subject always to the provisions of Applicable Law.

3) **CONSIDERATION AND PAYMENT TERMS**

a) Fees

i) In consideration for the performance of the Services by ARC, BCCL shall pay an amount of _____ (_____) to VENDOR as fees ("**Fees**") as set out in **Schedule 4** of this Agreement, provided that VENDOR is not in breach of this Agreement, and/or related Schedule(s) and/or Applicable Laws. The Parties hereby agree and acknowledge that the above Fees constitute full and final payment receivable by VENDOR towards its Services including (but not limited to) any payments towards taxes, services, goodwill or conduct not expressly stated under the terms of the Agreement. It is hereby clarified that the Fees does not include Costs as provided for in Clause 3 (b) (i) of this Agreement.

ii) Payment Mode and Method

VENDOR acknowledges that BCCL's obligation to pay the Fees or any installment thereof in accordance with this Clause 3 of the Agreement shall arise only upon: (1) achievement of the relevant payment milestone set forth in **Schedule 4** hereto; and (2) within 7 (seven) days from the receipt of an invoice from VENDOR requesting payment of such Fees in connection with the milestones achieved under **Schedule 4**.

b) Costs

i) BCCL shall pay the Costs, which "**Costs**" shall mean costs that will be incurred by VENDOR in connection with the Approvals (excluding costs incurred in connection with procurement and furnishing of the Tax Documents) and all payments required to be made by VENDOR under the Contracts (as per the Contract terms) and under insurance policies required to be obtained under Clause 8 (a) hereto in respect of the Event, subject to the conditions set forth below:

(1) Any request for payment of Costs shall be made by way of issuance of an invoice, which shall be accompanied with details of the items that that will be funded out of the relevant payment of Costs (along with details of payee such as bank name or code, account number, description of services, and any additional information regarding the person to whom VENDOR proposes to make the payment, including where available, invoices received by VENDOR from any third party in connection with such payments).

(2) The obligation of BCCL to bear any Costs is subject to VENDOR complying with the service levels as specified under **Schedule 3**. It is hereby clarified that, VENDOR shall not be deemed to be in breach of services levels in case of a breach of a Contract by a third party (not being

an Engaged Personnel).

(3) The Costs referred to in this sub-clause 3 (b) shall constitute Documented Costs subject to compliance with the provisions of Clause 3 (c) below.

ii) The Parties hereby agree that all Costs shall be paid to VENDOR into the Notified Bank Account (as hereinafter mentioned in clause 3 (d) (i) below), 2 (Two) Business Days prior to the Due Date for the payment of such Costs. Provided however BCCL shall only make payments towards any Costs under this Agreement, subject to VENDOR furnishing an invoice supporting the Costs in accordance with Clause 3 (b) (i) (1) at least 7 (Seven) Business days prior to the Due Date. For this purpose, VENDOR shall, from the date hereof and at a regular interval of every 15 (fifteen) days submit to BCCL a list of persons to whom payments are to be made, which payments are to be made including details of the respective Due Dates.

c) Documented Costs

i) Upon incurring Costs towards the Services set out under the Agreement, VENDOR shall, immediately and no later than within 1 (One) Business Day from payment towards such Costs, produce proof of payment including invoices against expenses and acknowledgment of receipt of payment by relevant counter party relating to such Costs. Only Costs with valid supporting documents evidencing incurrence and payment of a cost by VENDOR shall constitute "**Documented Costs**" for the purposes of this Agreement.

ii) Upon completion of the Event, BCCL may, at its own cost, by itself or through an audit firm / chartered accountant conduct an audit of all payments made by VENDOR in connection with the Event (including Documented Costs) and any amounts received by VENDOR in connection with the Event. Following such audit, if it is determined that Costs paid by BCCL to VENDOR at any time exceeds the cumulative Documented Costs or that any amounts have been realized by VENDOR under the Contracts or in connection with the Event, the excess Costs and realized amounts shall be refunded by VENDOR to BCCL immediately within 1 (One) Business Day upon demand without any protest or demur, unless there appears to be any manifest mathematical error in the computations set forth above. In case of any such manifest mathematical error in the computation of the amounts required to be refunded by VENDOR to BCCL under this Clause 3 (c) (ii), VENDOR shall intimate the same to BCCL in writing and BCCL shall rectify such an error in computation (if applicable) and intimate the revised amounts to VENDOR in writing. Upon receipt of the written intimation, VENDOR shall forthwith (and in case within 1 (One) Business Day from the intimation of the revised computation by BCCL in writing) pay BCCL the revised amount.

iii) No amounts shall be incurred / paid by VENDOR towards any Services which are prohibited or illegal under Applicable Law (including applicable anti-corruption statutes, anti-bribery statutes and anti-money laundering statutes). Any amounts paid by VENDOR in violation of Applicable Law shall not constitute a part of Documented Costs.

d) Tax Documents

i) Immediately upon the execution of this Agreement, VENDOR shall furnish the Tax Documents to BCCL. VENDOR hereby agrees and undertakes that, notwithstanding anything stated herein and irrespective of the payment schedule set forth in **Schedule 4** of this Agreement, BCCL will not be required to make any payments under this Agreement (including payment towards Costs under Clause 3 (b)) till the Tax Documents are furnished by VENDOR to BCCL). Provided however, the obligation of VENDOR to provide Services under this Agreement shall become effective from the date hereof and VENDOR will commence its obligations under this Agreement including but not limited to execution of Contracts and obtainment of Approvals. If in connection with the foregoing, any

Costs arise, such Costs ("**VENDOR Incurred Costs**") shall be met by VENDOR out of its own funds and in compliance with the provisions of this Agreement and the relevant Contracts (as applicable).

ii) The Parties further agree that, within 2 (Two) Business Days from the date on which VENDOR furnishes the Tax Documents to BCCL, BCCL shall pay VENDOR the Fees (to the extent that the same is payable under the timelines set forth under **Schedule 4**) and all VENDOR Incurred Costs. VENDOR agrees that non-payment of Fees and Costs by BCCL for the reasons set forth under this Clause 3 (d) shall not be considered a breach of this Agreement.

iii) Without prejudice to provisions of Clauses 3 (d) (i) and 3 (d) (ii) above, if BCCL makes any payments to VENDOR under Clauses 3 (a) and 3 (b) above, prior to receiving the Tax Documents from ARC, all such payments shall be made by BCCL subject to withholding of taxes on such payments in accordance with Applicable Law in India.

e) Notified Bank Account

i) The details of the Notified Bank Account are set forth in **Schedule 5** hereto. The Notified Bank Account shall be a bank account set up by VENDOR with a Bank in Dubai, United Arab Emirates (acceptable to BCCL) solely for the purposes of the Event including Costs and only Event related deposits and withdrawals (including any interbank fund transfer) shall be made into or made out of, as applicable, the Notified Bank Account. VENDOR hereby agrees that all Event related payments received by VENDOR (including Costs) shall be deposited in the Notified Bank Account and shall always be kept separately from any other monies of ARC. The Notified Bank Account shall be denominated in Dirhams (AED).

ii) No withdrawals (including interbank transfers and issuance of cheques) shall be made out of the Notified Bank Account without the prior written approval of BCCL. VENDOR Authorized Bank Representatives shall be the only signatories to the Notified Bank Account.

iii) Till the expiry of the Term of the Agreement and for a period of 12 (Twelve) months thereafter or such additional time period as BCCL may intimate in writing, VENDOR shall maintain the Notified Bank Account.

iv) VENDOR shall not utilize the funds lying in the Notified Bank Account in a manner that will result in a breach of the provisions of this Agreement.

f) Taxes

VENDOR shall, in accordance with the laws of the United Arab Emirates, ensure prompt payment of all United Arab Emirates taxes, duties and other levies to the concerned statutory or regulatory authorities, as may be applicable from time to time in relation to the Services, appointment of any other personnel for the Event, and procurement of material, levied or imposed on ARC.

g) It is expressly clarified that VENDOR shall not be entitled to any other costs, charges, fees, expenses or disbursements other than those agreed above.

4) **TERM OF AGREEMENT**

a) Subject to Clause 14 hereto, unless terminated earlier in accordance with the provisions of this Agreement, the "**Term**" of this Agreement shall be the period commencing from the date hereof and shall automatically end 30 (Thirty) days from the Event End Date or the Rescheduled Event Dates (as applicable) without the need for any further action from either Party.

b) Notwithstanding the foregoing, VENDOR hereby agrees and undertakes that, if pursuant

to a breach of this Agreement by VENDOR or for any reasons outside the control of BCCL (including Force Majeure), the Event cannot be held on the Event Dates, BCCL shall be entitled to reschedule the Event to any date falling in the 6 (Six) months' period from the Event End Date. In connection with the foregoing, BCCL may at its discretion, provide VENDOR with a notice of the proposed rescheduling and require VENDOR to render the Services required to conduct the Event on the Rescheduled Event Dates. For the purposes of this Clause, the dates to which the Event is proposed to be rescheduled shall hereinafter be referred to as the "**Rescheduled Event Dates**" and shall be intimated by BCCL to VENDOR in sufficient time prior to the Rescheduled Event Dates.

c) If BCCL exercises its rights under Clause 4 (b) above, VENDOR agrees and undertakes to provide the Services to BCCL on the Rescheduled Event Dates. Upon exercise of rights by BCCL under Clause 4 (b) above, it is hereby clarified that all provisions, including the obligations of each of the Parties, consideration and representations and warranties agreed to herein shall remain unchanged in the event of postponement of the Event to the Rescheduled Event Dates and all references to dates under this Agreement shall also stand amended by reference to the Rescheduled Event Dates.

d) It is hereby clarified that, if the Event is being rescheduled on account of Force Majeure or any other reason not attributable to the acts or omissions of VENDOR or pursuant to a breach of this Agreement by ARC, then BCCL shall bear all costs that may arise on account of any Approvals that may have to be obtained by VENDOR on account of the rescheduling of the Event and any additional costs / payments that may have to be made under the Contracts including penalties or compensation due under the Contracts. Such additional costs shall constitute 'Costs' for the purposes of this Agreement and will be borne and paid in accordance with Clause 3 above.

5) **CONTRACTS AND APPROVALS**

a. Contracts

i. VENDOR acknowledges that as the owner of the Event and Times Marks, BCCL needs to ensure that the Contracts are executed in a manner that meets the requirements of the Event including business needs and performance obligations of BCCL in connection with the Event and adequately protects all Times Marks, Proprietary Rights and other rights of BCCL and/or its Affiliates in connection with the Event. The Parties therefore agree and acknowledge that, as a part of the Services being rendered by VENDOR to BCCL and to secure the Event related rights of BCCL and/or its Affiliates including Proprietary Rights of BCCL in connection with the Event, each of the Contracts including the Identified Contracts shall be executed by VENDOR in line with the instructions provided by BCCL in writing and in such format as is approved in writing by BCCL, provided that, such Contracts are not in violation of the existing laws of UAE. For the reasons set out above, the Parties agree that, any amendment or termination of the said Contracts by VENDOR shall also be with the prior written consent of BCCL (in the form that is acceptable to BCCL). Furthermore, for the same reasons, all acts, omissions, consent, waivers, demands or concessions under the Contracts shall only be made / undertaken/ granted with the prior written consent of BCCL. The liability for Contracts executed by VENDOR pursuant to the written approval and/or in the format approved by BCCL shall rest solely with BCCL unless such a liability arises on account of any acts or omissions of VENDOR including a breach of this Agreement by ARC.

ii. To the extent permissible under the Applicable Law, BCCL may execute any of the Contracts on a tripartite basis with the counterparties to the Contracts and VENDOR and VENDOR hereby irrevocably agrees to such arrangement. The liability for Contracts executed by VENDOR pursuant to the written approval and/or in the format approved by BCCL shall rest solely with BCCL, unless such a liability arises on account of any acts or omissions of VENDOR including a breach of this Agreement by ARC.

iii. Upon written instructions from BCCL, VENDOR shall execute the Contracts including the Identified Contracts with the relevant counter party forthwith as per

the timelines for the Event related activities intimated by BCCL in writing from time to time. In the event VENDOR states in writing its objections for any Contract or the counterparty to whom BCCL instructs that the Contract should be issued, and BCCL, irrespective or ARC's objections instructs VENDOR to sign such Contract then, in such case, subject to obligations of VENDOR under **Schedule 3**, VENDOR shall not owe any obligation under the Contract for non-performance by the Contract counterparty, (provided that such non-performance is not attributable to acts or omissions of VENDOR including pursuant to a breach of this Agreement by ARC).

iv. VENDOR hereby agrees and undertakes that, it shall not breach any provisions of the Contracts executed by it in connection with the Event provided and to the extent that VENDOR has any obligation under the Contracts.

b. Approvals

i. VENDOR shall obtain all approvals required for the Event in accordance with **Schedule 3** in its name including the Identified Approvals. Such approvals shall be obtained on a one-time basis and shall apply to the Event alone. Post completion of the Event, VENDOR shall not apply for or conduct any event under the Times Marks. VENDOR hereby provides its irrevocable and unconditional no objection in relation to future events of the BCCL under the Times Marks in the UAE and internationally. Simultaneously with the execution of this Agreement, VENDOR hereby further agrees to sign the waiver, release and discharge undertaking annexed as **Schedule 8** hereto. VENDOR confirms and hereby consents that, the aforesaid undertaking issued by VENDOR may be submitted by BCCL to any relevant authority.

ii. VENDOR shall further ensure that the Approvals obtained for the Event (including the Identified Approvals) shall be valid and subsisting till the Event End Date or as required under Applicable Law. Where any conditions are required to be fulfilled under any of the Approvals for the Event, VENDOR and where necessary BCCL, shall fulfill such conditions to the satisfaction of the authorities issuing such Approval.

iii. All applications for the Approvals shall be verified and pre-approved by BCCL and VENDOR shall not make any false representations or provide any inaccurate information to the authorities as a part of the Approval application process. All BCCL approvals will be promptly given in order that ARC's timelines are not disrupted or delayed.

iv. If any act or omission on the part of VENDOR results in revocation of any of the Approvals including the Identified Approvals obtained for the Event, such an event shall constitute a Material Breach under this Agreement.

c. If requested by BCCL in writing and subject to receipt of necessary regulatory approvals by the assignee / novatee, VENDOR shall assign or novate (as requested by BCCL), any or all Approvals and Contracts obtained by or executed by VENDOR in connection with the Event to any Person identified by BCCL in writing, for no additional consideration. Provided that such request for assignment or novation shall be completed by VENDOR immediately upon payment of all amounts due and payable to VENDOR (including without limitation the Fees and Costs) in terms of this Agreement. VENDOR shall co-operate with BCCL and/or the relevant assignee / novatee in obtaining the regulatory approvals required for such assignment / novation. This obligation shall survive the termination of this Agreement.

Provided further it is agreed that notwithstanding any such assignment or novation the provisions of Clauses 3 (c) (ii) [*Documented Costs*], 6 [*Brand name and Intellectual Property Rights*], 11 [*Representations and Warranties*], 11 [*Confidentiality and Public Announcement*] and 15 [*Indemnity*] shall survive any such assignment or novation and shall be without limitation of time.

6) **BRAND NAME AND INTELLECTUAL PROPERTY RIGHTS**

a. Proprietary Rights:

VENDOR hereby unconditionally and irrevocably acknowledges as follows:

i. BCCL and its Affiliates shall be the sole owner of the Event and all rights (including Proprietary Rights), title, benefit, income and goodwill arising out of the Event shall be the sole and exclusive property of BCCL and/or its Affiliates.

ii. On account of provision of Services hereunder, VENDOR has not and will not acquire, and VENDOR will not represent in any manner that VENDOR has acquired, in any manner, any ownership rights in the Proprietary Rights.

iii. BCCL may use and grant to others the right to use the Proprietary Rights or any part thereof.

iv. The requirements and limitations with respect to ARC's use of the Proprietary Rights apply to all forms and formats, including print, video, electronic and other media and all other identifications and elements used or that may be used in future in commerce.

v. All the Proprietary Rights (including the Times Marks) and all associated goodwill, are the property of BCCL and/or its Affiliates and associate companies and shall inure directly and exclusively to the benefit of BCCL and/or its Affiliates and associate companies. It is hereby clarified that "TOIFA" and "Times of India Film Awards" are trademarks that are in the process of being registered by BCCL and/or its Affiliates in the UAE and VENDOR shall not directly or indirectly make any representation for any registrations/opposition etc. before Ministry of Economy or any other governmental authority based on prior use and where required, assist with obtainment of the said trademarks in the name of BCCL and/or its Affiliates.

vi. Upon the expiration or termination of this Agreement for any reason, no monetary amount shall be attributable to any goodwill associated with ARC's use of any Proprietary Rights (including the Times Marks).

vii. VENDOR agrees to (i) not use the Proprietary Rights other than as specifically permitted under this Agreement including to perform any activity or to incur any obligation or indebtedness; and (ii) not claim or assert ownership to any Proprietary Rights and not apply for the registration of any Proprietary Rights in its own name.

viii. VENDOR may not at any time during or after the Term contest, or assist any other person in contesting, the validity or ownership of any of the Times Marks. Neither VENDOR nor any of its Affiliates or employees or agents or representatives shall directly or indirectly apply for, register, attempt to, or obtain control of, or interfere with efforts by BCCL or any Affiliate or associate company of BCCL to obtain registration or ownership of any name, trademark, service mark, or other identifying name related to the Times Marks anywhere in the world including in United Arab Emirates.

ix. This Agreement does not give VENDOR the right to sell, or to grant the right to any Person to sell, products bearing the Times Marks, and VENDOR agrees not to sell, and to prevent any sales of, such products / services, unless BCCL authorizes the sales specifically in writing. VENDOR shall not use the Times Marks on products or services obtained from any source other than BCCL or sources approved in writing by BCCL and provided such use is permitted by BCCL.

x. VENDOR will not use the name of "Times of India", "Times of India Film Awards", "Bennett Coleman & Co Limited", "TOIFA" or any other trade name or brand name owned or used by BCCL and/or its Affiliate (either alone or in

conjunction with or as part of any other words, name, logos or designs) or any trademarks, services marks, logos, fanciful character or design of BCCL and/or its Affiliate except as expressly permitted under this Agreement or in any way so as to constitute an endorsement, false association or testimonial, express or implied, of any party (including ARC), or any service or product, and will not be involved in or authorize any publicity or advertising in relation to a BCCL's products / services (except at BCCL's request) without BCCL's prior written approval.

b. VENDOR agrees that it shall not, directly or indirectly, infringe the Proprietary Rights or contest or aid others in contesting the validity or ownership and right to use the Proprietary Rights, or take any other action in derogation of the Proprietary Rights against BCCL and/or its Affiliates. VENDOR shall promptly advise BCCL in writing of (a) any objections, demands, controversies, allegations or actions, involving the Proprietary Rights (including the Times Marks), of which VENDOR or its Affiliates or agents has knowledge of having been asserted by any third party against VENDOR or any of its Affiliates or agents, and (b) any potentially infringing or unauthorized uses of the Proprietary Rights (including the Times Marks) by third parties of which VENDOR has actual knowledge. VENDOR shall, at BCCL's cost, assist BCCL in taking action as BCCL may request to stop such activities, but shall take no action nor incur any expenses on BCCL's behalf without BCCL's prior written approval. VENDOR shall execute all documents and take or not take such other actions as may, in the reasonable opinion of BCCL's legal counsel, be necessary or advisable to carry out any such protection, defense or registration.

c. <u>BCCL Materials</u>

i. VENDOR shall immediately upon completion of the Event, return to BCCL or to its designated representative all elements of the Services including all such materials, brochures, documents, authorities, letters, Contracts, etc. that may be provided by BCCL to VENDOR including any materials created by VENDOR for the Event or materials delivered to VENDOR in connection with the Event by any third party ("**BCCL Materials**"). In the event that BCCL fails to forthwith return the BCCL Materials as required by BCCL, BCCL shall be entitled to enter ARC's premises and the premises of any parties acting in concert with VENDOR for the purpose of recovering such BCCL Materials and all such other materials relating hereto and VENDOR hereby consents to such entry by BCCL into the premises of VENDOR and or any parties acting in concert with ARC.

ii. VENDOR shall not use and shall not allow any third party to use the BCCL Materials in any manner whatsoever, except in the manner as set out under this Agreement and specifically in relation to the Event. VENDOR further acknowledges and confirms that the BCCL Materials, in whatsoever stage, shall be the sole and exclusive property of BCCL and VENDOR shall forthwith return to BCCL all such BCCL Materials at such place(s) as may be instructed by BCCL upon completion of the Services and/or upon request by BCCL.

iii. VENDOR agrees that the entire Event including all preparatory works relating to the Event, in whatever stage of completion, shall be considered and deemed where permissible by Applicable Law, a commissioned work made for valuable consideration and BCCL shall be deemed the sole and exclusive author of the said Event and shall be the sole and exclusive first owner for all purposes of all rights and interests throughout the universe, in perpetuity and in all languages, dialects, forms and versions in all media now known or hereafter existing (including copyright, performers rights, broadcasting rights and all other Intellectual Property Rights and all renewals and extensions thereof) therein and in all works deriving therefrom, upon creation thereof.

iv. All Intellectual Property Right in the Event including any rights arising under the performance contracts executed with the Performers for the Event by VENDOR shall vest in perpetuity with BCCL as the owner of the Event, given that all persons engaged with the Event have been engaged by or on behalf of BCCL on a 'work for hire' basis. Where the contents of the Event and all works deriving therefrom are not deemed by Applicable Law to be commissioned works made for

valuable consideration, and in respect of the Services, VENDOR hereby irrevocably grants and assigns to BCCL absolutely all now known or hereafter existing rights and interests of every kind (including copyright, performers rights, broadcasting rights, the right to make and reproduce and all other Intellectual Property Rights) in the Services and all aspects of the Event and all works deriving therefrom, throughout the universe, in perpetuity and in all languages, dialects, forms and versions in all media now known or hereafter existing , pertaining to the Services and all works deriving therefrom including, without limitation, all exploitation, reproduction, publishing, recording, synchronization, distribution, broadcasting and merchandising rights in any and all means and media, now known or hereafter existing and the copyright, performers rights, broadcasting rights thereto, from the moment that such rights come into existence, whether or not payment for the Services has been made. VENDOR also waives all "moral rights" or author's special rights relating to the Services and all works deriving therefrom to which VENDOR is now or may in the future be entitled throughout the universe.

v. VENDOR agrees at any time upon BCCL's request to execute such further documents, and to do such other acts, as may be required to effect, perfect, evidence or confirm BCCL's ownership of and rights to fully exploit, the Event and all works deriving therefrom. Without prejudice to Clause 6 (c) (iv) above, to the extent that any of the aforesaid current or future rights or interests fails to vest in BCCL on its coming into existence and/or cannot be assigned or transferred to BCCL under the law, VENDOR hereby agrees that BCCL shall have a royalty-free, irrevocable, unlimited and perpetual sole and exclusive license to use and exploit all such rights and interests (including, without limitation, the right to copy, reproduce, broadcast, perform, import, export, sell, distribute or use in any manner whatsoever) the Event related works and all works deriving therefrom for all purposes, throughout the universe, in perpetuity and in all languages, dialects, forms and versions in all media now known or developed in future as if BCCL is the sole and exclusive owner of such Event and all works deriving therefrom and all rights and interests thereto.

vi. VENDOR agrees that BCCL shall be entitled to use and exploit the Event and all works deriving therefrom in all means and media throughout the world in its absolute discretion. BCCL shall have the right in its absolute discretion to edit, change, adapt and/or rearrange the whole or part of any of the Event and/or all works deriving therefrom.

d. Notwithstanding anything set forth under Applicable Law, all assignments granted under this Clause 6 to BCCL shall not lapse or revert to the assignor, even if BCCL does not exercise the rights under the assignment within any time period prescribed under Applicable Law.

e. Except as expressly approved by BCCL in writing, all monetization opportunities with relation to the Event shall solely vest with BCCL and/or its Affiliates (including all revenues realizable from sale of tickets, broadcasting rights, sponsorship rights etc.) and VENDOR hereby confirms that it does not have and shall not in the future assert a right to the revenues earned from the Event. Where any revenue or receivables in connection with the Event (other than Fees due to VENDOR in terms of this Agreement) are received by ARC, the same shall be held by VENDOR for the trust and benefit of BCCL and shall be forthwith repaid to BCCL or to such other Person designated by BCCL. Prior to date of receipt of such funds, if BCCL requires VENDOR to undertake any actions or execute any documents that may be required by BCCL in connection with such amounts received or receivable by ARC, VENDOR shall unconditionally undertake the same, at BCCL's cost.

f. Any breach of the obligations under this Clause 6 shall be deemed to be a Material Breach of this Agreement. This Clause 6 shall survive the expiration or termination of this Agreement.

g. Nothing in this Clause shall affect the ownership of any intellectual property rights owned by VENDOR prior to the date of entering into this Agreement including without

limitation to its own brand, logos and other intellectual or industrial property.

7) **REPORTS AND RECORDS**

a. VENDOR shall maintain records of all expenses and receipts of monies with relation to the Event. VENDOR shall maintain these records in chronological order and retain them for at least 6 (Six) months post termination of this Agreement whether by premature termination or termination by the effluxion of time. Upon BCCL's request, and for a limited period of 6 (Six) months after the Event End Date, VENDOR shall compile and provide to BCCL any financial information regarding the Event. The immediately preceding provisions in this Clause shall survive the expiration or termination of this Agreement. All data provided to BCCL under this Clause 7 (a) shall belong to BCCL and may be used and published by BCCL.

b. Subject to providing reasonable written notice to ARC, BCCL and its designated agents shall have the right to examine, audit and photocopy ARC's business records, accounts, books and data at all reasonable times but only to the extent of matters related to the Event and no further to ensure that VENDOR is complying with the terms of this Agreement. If such inspection discloses any significant or material discrepancies in the information provided by VENDOR with relation to the Event, the same will, unless cured by VENDOR within 3 (Three) days from such discrepancy being discovered or if incurable, constitute a Material Breach. VENDOR shall fully cooperate with BCCL and its designated agents during any such audits.

c. VENDOR agrees that at all stages of the performance of the Services, it shall be readily available to discuss with BCCL with respect to the progress of the Services and the Event. Further, VENDOR shall, 3 (Three) times in a week basis report to BCCL any acts undertaken by VENDOR in connection with the Event / Services in the format required by BCCL.

8) **INSURANCE**

a. VENDOR agrees to obtain and maintain a: (1) comprehensive general public liability insurance ("**Public Liability Insurance Policy**") covering all aspects of the Event operations, together with such other operational coverage as required by Dubai Sports City such as all risks and broad form public and product liability including food and beverage and associated liabilities, sabotage and terrorism, safety and security of event participants including performers and guests, unforeseen injuries arising out of the Event and associated liabilities; and (2) if required by BCCL, an insurance policy covering liabilities arising on account of cancellation of the Event ("**Event Cancellation Insurance Policy**"). The Public Liability Insurance Policy and Event Cancellation Insurance Policy (if obtained by VENDOR pursuant to this Clause) shall be taken on terms and conditions acceptable to BCCL in writing and within the timelines stipulated by BCCL in this regard. The Public Liability Insurance Policy and the Event Cancellation Insurance Policy (if obtained by VENDOR pursuant to this Clause) is jointly referred to as the "**Insurance Policies**".

b. The costs incurred in obtaining insurances in accordance with Clause 8 (a) shall form part of the Costs under this Agreement.

c. VENDOR hereby expressly agrees that BCCL and VENDOR shall both be nominated as the primary insured under the Insurance Policies obtained in accordance with Clause 8 (a) above. VENDOR hereby irrevocably and unconditionally agrees that, VENDOR shall not send (directly or indirectly) any correspondence to the insurers issuing the Insurance Policies and all correspondence and instructions in connection with the Insurance Policies shall be made by BCCL or any Person designated by BCCL in writing. VENDOR further agrees that, all proceeds under the insurance policies (including as realized directly by ARC) shall be utilized to discharge all liabilities and losses arising in connection with the Event including any third party claims received by a Party in connection with the Event including under the Contracts. Neither Party shall exercise their rights as an insured person under the insurance policy obtained in terms of Clause 8 (a) above in a manner which may impair the ability of the other Party to duly discharge its obligations owed to any third parties in connection with the Event or result in a breach under any Contract. In

the event of any conflict between the terms of the insurance policy and obligations under this Clause 8, the terms agreed herein above shall gain precedence without any limitation whatsoever. VENDOR hereby agrees that in the event BCCL or any of its Affiliates set up a company in UAE, BCCL shall have the unfettered right to name such company as an 'Additional Insured' party under the Insurance Policies.

9) **RESTRICTIONS**

a. During the Term of this Agreement, VENDOR shall not, without the prior written approval of BCCL, perform or undertake the provision of any services in United Arab Emirates (whether directly or indirectly) either for itself or for a third party which might interfere or conflict with its commitments to and the requirements of the Services in relation to the Event.

b. During the Term of this Agreement and for the Initial Restriction Term thereafter, VENDOR shall not directly or indirectly undertake any activities or assist any Person with any event that is same or similar to the Event. For a period of 6 (Six) months from the expiry of Initial Restriction Term, VENDOR shall not directly or indirectly undertake any activities or assist any Times Competitor (whether directly or indirectly) in connection with any event that is same or similar to the Event. For the purposes of this Clause, "**Times Competitor**" shall mean any person that engages in a business that, directly or indirectly competes with the business carried on by the Times group (i.e. business of Bennett Coleman Company Limited and/or any of its Affiliates), including but not limited to the Persons owning / conducting the events set out in **Schedule 9** hereto. For the purpose of this Clause "**Initial Restriction Term**" shall mean a period of 6 (six) months from the expiry of the Term.

c. Where the Event is rescheduled for any reason not attributable to acts or omissions of ARC, then the Initial Restriction Term for the purpose of Clause 9 shall be computed with reference to original term of this Agreement and will not include the rescheduled term of this Agreement in terms of Clause 4 above.

10) **ENGAGED PERSONNEL**

a. All Services under this Agreement shall be rendered directly by ARC. VENDOR shall not be permitted to delegate, sub-contract or outsource any of the Services under this Agreement to any Person, unless otherwise consented to by BCCL in writing.

b. VENDOR shall from its own staff and personnel, provide adequate and competent Engaged Personnel, as may be required by BCCL for efficient and timely rendering of the Services by VENDOR under this Agreement. The Engaged Personnel shall not and shall not be deemed to have any privity of Contract with BCCL. VENDOR shall provide the Engaged Personnel on a dedicated and on an exclusive basis for the Event from the date hereof. The list of Engaged Personnel that shall be engaged from the date hereof is as set forth in **Schedule 7** hereto.

c. In connection with Clause 10 (b) above, VENDOR agrees as under:

i. For the purpose of this clause and save as otherwise provided under the Agreement, "**Engaged Personnel**" shall mean any person directly engaged and/or employed by VENDOR under its own license, visa and sponsorship and excludes such personnel that may be engaged under the Contracts including Identified Contracts; and

ii. VENDOR shall ensure that all such Engaged Personnel are under the legal sponsorship of VENDOR and hold a valid work permit and NOCs, and are not in violation of the applicable labour laws of UAE.

d. VENDOR shall ensure that any Engaged Personnel involved in the provision of Services shall comply with the terms and conditions of this Agreement and VENDOR shall be solely liable to BCCL for any act or omission of such Engaged Personnel. VENDOR acknowledges that the warranties and covenants set forth in this Agreement shall cover all acts and omissions of the Engaged Personnel.

11) **REPRESENTATIONS AND WARRANTIES**

a. VENDOR hereby represents, warrants and undertakes that:

i. During the Term of the Agreement, there will be no change in ownership or control of ARC. Provided however, VENDOR shall not be deemed to have breached this Clause if there is any change in ownership of VENDOR on account of the death of an individual shareholder of ARC. BCCL shall however retain the right to terminate this Agreement and require the novation and/or assignment of Contracts and Approvals in accordance with Clause 5 (c) of this Agreement, on account of change in shareholding due to the death of an individual shareholder;

ii. VENDOR has the right, power and authority to enter into, execute and fully perform this Agreement and the Services;

iii. The representative signing on behalf VENDOR is a legal representation of VENDOR and has the power, authority and legal capacity to enter into this Agreement including without limitation to express authority from board of VENDOR and its shareholders;

iv. VENDOR has and shall maintain valid trade licenses that will permit the Event to be conducted as per the scope of Services set out in **Schedule 2** and in accordance with the laws of the United Arab Emirates;

v. The Services including all material furnished, suggested or executed by VENDOR in connection with the Event will not infringe the rights of any third party or contain any defamatory matter or breach any contract or duty of confidence or invade the privacy of any person or violate any law, regulation, court order or administrative rule;

vi. VENDOR will not order goods or pledge the credit of BCCL or incur any liability on BCCL's behalf without BCCL's prior written permission;

vii. VENDOR shall exercise the skill, care and diligence expected of a competent and experienced contractor when performing the Services;

viii. VENDOR shall not be involved in the advertising or endorsement of any goods, products or services of BCCL or its Affiliate or engage in any activity might cause damage to the reputation of BCCL or its Affiliate or adversely affect the Event;

ix. VENDOR shall obtain and procure the requisite approvals, consents and licenses from performing rights societies and/or copyright societies required for music to be used/performed at the Venue for the Event as required in UAE. BCCL shall not be obligated to make payments to any third party including any copyright societies in connection with the foregoing; and

x. VENDOR shall comply with all Applicable Laws and obtain and procure all approvals, consents and permissions, no objections, releases from governmental, quasi-governmental, administrative bodies, local or central authorities and/or applicable artists associations or guilds required for managing, conducting, executing and performing the Event.

VENDOR hereby acknowledges that this Agreement is being entered into by BCCL solely based on the representations provided by VENDOR above and pursuant to VENDOR (including its shareholders and managing director) providing information with relation to itself and its ability to execute and implement the provisions of this Agreement in complete trust and has not independently made any enquiries or due diligence in this regard.

b. BCCL hereby represents, warrants and undertakes that:

i. it has the right, power and authority to enter into this Agreement on terms herein and that it has taken all action required under its incorporation documents and under the laws governing it to enter into this Agreement and assume the obligations undertaken by it hereunder;

ii. the representative signing on behalf BCCL is a legal representation of BCCL and has the power, authority and legal capacity to enter into this Agreement;

iii. BCCL Material furnished by BCCL to VENDOR in connection with the Event will not infringe the rights of any third party or contain any defamatory matter or breach any contract or duty of confidence or invade the privacy of any person or violate any law, regulation, court order or administrative rule;

iv. BCCL shall not and shall procure that its, employees do not undertake any actions or make any public statements that, in the sole opinion of ARC, causes or is likely to cause damage or detriment to ARC's reputation;

v. BCCL shall include a contractual obligation on the performers of the Event to be sensitive to and comply with the social and moral value of United Arab Emirates, whilst performing at the Event; and

vi. it shall (to the extent applicable to BCCL) comply with the relevant Applicable Laws in the United Arab Emirates in conducting the Event. Any acts or omissions by BCCL pursuant to advice of VENDOR resulting in breach of Applicable Law shall not constitute a breach of this representation by BCCL.

12) **CONFIDENTIALITY & PUBLIC ANNOUNCEMENT**

a. Confidentiality Obligations

i. ARC, Engaged Personnel(s) (if any) and other employees, representatives or agents of ARC, if any, may, during the course of ARC's Services hereunder, have access to, and acquire knowledge from, plans, drawings, specifications, ideas, characters, art work, logos, concepts, models, working procedures, habits, practices, policies, prospects, techniques, technologies, projects, business affairs, trade secrets, materials, data, systems, products, sales, transactions, litigation, communications, contracts, records, assets, intellectual property or other property rights, obligations or information (collectively, "**Confidential Material**") of or with respect to the Event and/or BCCL and/or its Affiliates, or, through ARC's association with BCCL, of or with respect to third parties, which such Confidential Material may not be accessible or known to the general public. Any knowledge or information acquired by VENDOR or Engaged Personnel(s) from or about such Confidential Material or otherwise through ARC's engagement hereunder shall not be used, published or divulged by VENDOR or Engaged Personnel(s) to any person or entity, or used in any manner in any advertising or promotion regarding VENDOR or ARC's Services, or in any other manner or connection whatsoever without first having obtained the prior written permission of BCCL, which permission BCCL may withhold in BCCL's sole discretion. Upon expiry or termination of this Agreement and/or any Schedule(s), VENDOR shall forthwith, but in any event no later than 7 (Seven) days of such expiry/termination, deliver to BCCL and/or destroy at BCCL's request, any Confidential Material (and all copies thereof) of whatever kind or nature relating to the matters referred to herein.

ii. For the purposes of maintaining its obligation of confidentiality, VENDOR shall procure and obtain all necessary non-disclosure letters and agreements from Engaged Personnel(s) (if any) and shall inform and ensure that such persons comply with the confidentiality obligations under this Agreement.

iii. The provisions of sub-clauses (i) and (ii) of this Clause 12 (a) shall apply equally to BCCL in connection with any Confidential Information relating to VENDOR obtained by BCCL under this Agreement (provided that such Confidential Information does not in any manner relate to the Event or the Times Group).

b. Public Statements

i. VENDOR shall not make any press releases and other public statements relating to the Event without the prior written approval of BCCL.

ii. VENDOR may (subject to the prior written approval of BCCL, which approval shall not be unreasonably withheld by BCCL) after the Event End Date and without the payment of any fee, charge, levy or impost to BCCL, at ARC's own cost, state in its promotional material that VENDOR was involved in the management of the Event. Such a statement shall not be made in any manner that will adversely affect the rights of BCCL under this Agreement (including its rights under Clause 6 and 12). As a part of this promotional statement, VENDOR shall not use any BCCL Proprietary Rights or BCCL Material unless such use is approved in writing by BCCL. VENDOR and the Engaged Personnel shall not make any negative observations in relation to the Event and the Times Group.

13) RELATIONSHIP

a. It is understood and agreed that VENDOR is acting as an independent contractor in the performance of the Services hereunder, and nothing herein contained shall be deemed to create an agency, employment or joint venture relationship between VENDOR and BCCL. Nothing herein contained shall constitute an express or implied current or future offer of employment by BCCL to VENDOR or its Engaged Personnel(s) (if any) and VENDOR will in no event be entitled to participate in, or to receive any benefits from, any of BCCL's benefit or welfare plans available to employees of BCCL. BCCL shall have no obligation whatsoever to compensate VENDOR or its Engaged Personnel(s) (if any), on account of any damages or injuries that VENDOR or its Engaged Personnel(s) (if any) may sustain as a result or in the course of the performance of ARC's Services hereunder not resulting from any wrongful act of BCCL or its agents, servants or employees. Each Party will be solely responsible for the payment of all applicable income taxes, sales tax, social security taxes and similar taxes and all other assessments, taxes, contributions or sums payable by such Party wherever they may be levied or imposed in accordance with the law applicable to such Party. VENDOR will be solely responsible for payment of ARC's own and it's Engaged Personnel(s) medical, disability, personal and business insurance premiums, if any, and all administrative and operating expenses. VENDOR shall indemnify and hold BCCL free and harmless from any claim or liability arising from the Engaged Personnel. The wages, salaries and payments of all employees employed by VENDOR shall be for ARC's exclusive account and in no event shall any such employees be deemed the employees of BCCL. VENDOR therefore indemnifies and holds BCCL free from any cause of action, claim or liability existing under applicable labor law affecting VENDOR and/or all such employees.

b. Except as set forth in Clause 8, BCCL will be solely responsible for payment of its own and its employees medical, disability, personal and business insurance premiums, if any, and all administrative and operating expenses in connection with the foregoing. BCCL shall indemnify and hold VENDOR free and harmless from any claim or liability arising from the employment of personnel by BCCL on its pay roll to perform its obligations under this Agreement. The wages of all BCCL employees shall be for BCCL's exclusive account and in no event shall any such employees be deemed the employees of ARC.

14) SUSPENSION AND TERMINATION

a. If at any time during the Term:

i. VENDOR or BCCL is unable to pay its debts in the ordinary course of business, or upon VENDOR or BCCL ceasing its business, becoming insolvent, bankrupt, going into liquidation, being dissolved, compounding with its creditors or having a receiver appointed of the whole or any part of its assets, then, the un-affected Party may at its sole discretion by written notice to affected Party terminate this Agreement and all Schedule(s) hereto; or

ii. If BCCL elects to cancel the Event, then VENDOR shall have the right to

terminate this Agreement and all Schedule(s) hereto by giving BCCL 3 (three) days written notice in which event BCCL shall pay VENDOR all amounts due and payable to VENDOR up to the effective termination date; or

iii. if VENDOR commits a breach including breach of any timeline which is incapable of remedy or fails to remedy any breach capable of remedy within 3 (Three) days of written notice by BCCL ("**Material Breach**") then, BCCL may at its sole discretion by written notice to VENDOR suspend or terminate this Agreement and all Schedule(s) hereto; or

iv. if the performance of a Party's obligations under this Agreement is prevented by reason of Force Majeure then, BCCL may, at its sole discretion by written notice to VENDOR terminate this Agreement and all Schedule(s) hereto. Without prejudice to the foregoing, during the subsistence of the Force Majeure event, the rights and obligations of the Parties under this Agreement (to the extent that such rights and obligations are affected by the Force Majeure Event) shall stand in abeyance.

Where BCCL terminates this Agreement pursuant to a Material Breach, without prejudice to the termination rights, indemnity rights and other remedies available with BCCL under this Agreement and if as a result of a Material Breach on the part of ARC, BCCL and/or its agents and representatives are unable to conduct the Event or as a result of a Material Breach by VENDOR there is any delay in the timelines for conducting the Event beyond the Event Start Date, then VENDOR shall be liable to refund the Fees received by VENDOR until that time under this Agreement. Further, if elected by BCCL, all the rights of VENDOR under this Agreement shall automatically terminate upon such Material Breach. VENDOR shall further assist BCCL or any person designated by BCCL to obtain all necessary approvals to carry out the Services in connection with the Event.

b. BCCL shall, in any event at its sole discretion and at any time, be able to terminate this Agreement and/or any Schedule(s) by giving VENDOR 5 (Five) days' notice in writing, subject to BCCL discharging all its payment obligations arising in term of this Agreement prior to the date of the termination of the Agreement including any compensation or penalties that may be due or payable by VENDOR to counterparties as a result of premature termination of Contracts.

c. Any termination of this Agreement and/or any Schedule(s) shall not affect the rights, obligations and liabilities of either Party as at the date of termination of the Agreement and/or any Schedule(s). Further, the expiration or termination of this Agreement does not terminate or affect BCCL's or ARC's covenants and obligations that either expressly or by their nature survive the expiration or termination of this Agreement including but not limited to Clauses 5 (Contracts & Approvals), 6 (Brand Name and Intellectual Property Rights), 7 (Reports and Records), 9 (Restrictions), 11 (Representations and Warranties), 12 (Confidentiality and Public Announcement), 13 (Relationship), 15 (Indemnity), 17 (Governing Law and Jurisdiction) and 18 (Miscellaneous) of this Agreement. It is further clarified that, notwithstanding anything stated herein: (1) till all amounts payable by VENDOR to BCCL (including any revenues received or receivable by VENDOR under any Contract) is duly discharged, all the rights of BCCL under this Agreement (and the corresponding obligations of VENDOR under this Agreement) will continue to survive; and (2) till all amounts payable by BCCL to VENDOR is duly discharged (including any amounts payable by VENDOR under the Contracts), the rights of VENDOR to receive payments under this Agreement (and the corresponding obligations of BCCL under this Agreement) will continue to survive;

d. Upon termination of this Agreement, VENDOR shall forthwith:

i. deliver to BCCL, all the BCCL Materials whether in completed form or not as exists at the date of termination;

ii. at BCCL's election, destroy or deliver to BCCL all content, information and documents in whatever form provided by BCCL hereunder which are in the possession or under the control of ARC; and

iii. cease and desist from using any all content, information and documents in whatever form provided by BCCL hereunder and discontinue associating itself with the Event or BCCL in any manner.

e. The termination, expiration or breach of this Agreement for any reason whatsoever shall not affect the commissioned work for valuable consideration and first owner status of BCCL in relation to the Events.

f. VENDOR shall have the right by 7 (seven) days written notice to terminate this Agreement in the event BCCL does not pay any installment of Fees payable by BCCL on the Due Date. In the event of such termination by VENDOR all amounts due and payable to VENDOR under this Agreement shall be paid by BCCL, provided however, VENDOR shall, if required assign or novate any of the Contracts executed by VENDOR in connection with the Event in accordance with Clause 5 (c) above.

15) **INDEMNITY**

~~a.~~ VENDOR Indemnity

VENDOR hereby agrees to indemnify BCCL and its Affiliates and their respective directors, officers, employees and agents, and the successors and assigns of each of the foregoing (collectively, the "**BCCL Indemnified Parties**"), and to hold it and them harmless from and against any and all claims, demands, causes of action, losses (direct or otherwise), liabilities and expenses (including without limitation attorneys' fees and court costs) resulting or arising from any acts of omissions of VENDOR including but not limited to the following:

i. any breach of ARC's, its Engaged Personnel (if any) and/or its officers, employee and agents' representations, warranties, obligations, duties and/or undertakings set forth in this Agreement and each Schedule(s) thereto, or caused by or arising out of VENDOR 's, its Engaged Personnel(s)' (if any) and/or its officers, employees and agents' performance of the Services;

ii. any loss, damage or injury (including disease and death) to Persons (including the BCCL Indemnified Parties) or property (including property of the BCCL Indemnified Parties) caused by or resulting from acts or omissions or breaches of its obligations under this Agreement on the part of ARC, its employees, representatives, servants, agents or sub-consultants in connection with performance of the Service;

iii. as a result of or in connection with any negligent act, error or omission of ARC, its employees, representatives, servants, agents or sub-consultants or failure to perform their activities strictly in accordance with the professional standards of skill, care and diligence generally expected of experienced and competent international consultants specializing in work of a type, complexity and magnitude similar to the activities in question;

iv. from and against any and all third party claims including claims resulting or arising from the infringement or violation of any third party rights;

v. losses arising in connection with the Event on account of non-obtainment or delay in obtainment of Approvals by ARC;

vi. breach of any Intellectual Property Rights of BCCL and/or its Affiliates under this Agreement (including impairment of any rights of BCCL or breach of Clause 6 hereto);

vii. delay or non-occurrence of Event as scheduled here under (except where such delay is solely attributable to acts or omissions of BCCL); and / or

viii. any claims under the Contracts by counter parties to the Contracts including as set forth in **Part A of Schedule 6** of this Agreement.

Without prejudice to the aforesaid indemnity including the indemnities being provided under Clauses 15 (a) (ii) and 15 (a) (iii) above, VENDOR shall maintain during the continuance of this Agreement all insurances that VENDOR is required to maintain under this Agreement.

b. BCCL hereby agrees to indemnify VENDOR and its Affiliates and their respective directors, officers, employees and agents, and the successors and assigns of each of the foregoing (collectively, the "**VENDOR Indemnified Parties**"), and to hold it and them harmless from and against any and all claims, demands, causes of action, direct losses, direct liabilities and expenses (including without limitation attorneys' fees and court costs) resulting or arising on account of the following:

i. Non-payment of Costs by BCCL in terms of this Agreement, where pursuant to such non-payment by BCCL, a claim for damages is made against VENDOR under the Contracts;

ii. Breach of any Contracts set out in **Part A of Schedule 6** hereto by any counterparties to the said Contracts, provided that VENDOR has complied with the Service Levels set forth in **Schedule 3** hereto;

iii. Any liability arising to the account of VENDOR Indemnified Parties on account of acting as per the written instructions of BCCL in connection with any Contracts including as set out in **Part A of Schedule 6** hereto; and

iv. BCCL materially breaching its obligations under this Agreement, which breach is incurable or remains un-cured at the end of the cure period notified for such breach by ARC.

c. Any Indemnified Party shall be entitled, upon written notice to indemnifying Party, to the timely appointment of counsel by the indemnifying Party for the defense of any third party claim, which counsel shall be subject to the approval of the Indemnified Party. If, in the Indemnified Party's judgment, a conflict of interest exists between the Indemnified Party and the indemnifying Party at any time during the defense of the Indemnified Party, the Indemnified Party may appoint independent counsel of its choice for the defense of the Indemnified Party as to such third party claim at the cost of the Indemnifying Party. In addition, regardless of whether the Indemnified Party is appointed counsel or selects independent counsel (a) the Indemnified Party shall have the right to participate in the defense of any third party claim and approve any proposed settlement of such third party claim, and (b) all reasonable costs and expenses (including attorneys fees and costs) of the Indemnified Party shall be paid by the indemnifying Party. If the indemnifying Party fails to timely pay such costs and expenses (including attorneys fees and costs), the Indemnified Party shall have the right, but not the obligation, to pay such amounts and be reimbursed by the indemnifying Party on demand.-

d. In no event shall the indemnifying Party or the Indemnified Party settle any third party claim without the prior written consent of the other Party, subject to the Indemnified Party's right to settle any third party claim upon its assumption of the defense of such third party claim, as provided in Clause 15 (c) above. Upon receipt of a *bona fide* final settlement proposal that the indemnifying Party is prepared to accept in good faith (or upon notification by the third party claimant of its acceptance of the indemnifying Party's final settlement proposal), the indemnifying Party shall notify the Indemnified Party in writing of the terms of such settlement proposal. The Indemnified Party shall notify the indemnifying Party in writing of its approval or rejection of the final settlement proposal within 10 (Ten) days after receipt of the final settlement proposal. If the Indemnified Party fails to reject the final settlement proposal within such 10 (Ten) days' period, the Indemnified Party shall be deemed to have approved such final settlement proposal. If the Indemnified Party approves (or is deemed to have approved) the final settlement proposal, the indemnifying Party shall have the right to settle such third party claim, provided (a) the indemnifying Party pays all amounts due in connection with or by reason of such settlement, and (b) the Indemnified Party is unconditionally released and discharged from all liability in respect of such third party claim. If the Indemnified Party rejects the final settlement proposal, the Indemnified Party shall be obligated to assume

the defense of such third party claim and thereafter shall control the defense and any settlement of such Third-Party Claim. Upon the Indemnified Party's assumption of such third party claim, the Indemnified Party shall be responsible only for (i) those costs and expenses (including attorneys fees and expenses) incurred from the date of election by the Indemnified Party in excess of the amount of settlement set forth in the final settlement proposal, and (ii) any attorneys' fees and costs incurred after the date of the Indemnified Party's assumption of the defense.

e. Nothing under Clause 15 (b) and correspondingly under Clause 15 (c) and (d) will apply to any claims, demands, causes of action, direct losses, direct liabilities and expenses (including without limitation attorneys' fees and court costs) that is or may be incurred by VENDOR Indemnified Parties to the extent that the same is covered by the insurance policies availed by the Parties. Pursuant to the foregoing, VENDOR hereby unconditionally and irrevocably releases BCCL and its affiliates, and their respective partners, members, trustees, beneficiaries, directors, officers, employees and agents, and the successors and assigns of each of the foregoing, from any and all liability, damage, loss, cost or expense incurred by VENDOR Indemnified Parties (whether or not due to the negligent or other acts or omissions of BCCL and/or its affiliates and other related parties so released) to the extent such liability, damage, loss, cost or expense is covered by and paid for under any insurance policies obtained by the Parties. Without prejudice to the foregoing, where VENDOR is required to make any deposits towards any criminal proceedings initiated by any Court of Dubai or by the police authorities, BCCL agrees to pay such deposits forthwith. BCCL will however not be required to make any such deposits, if such deposit: (A) does not arise on account of provision of Services under this Agreement; (B) is on account of any acts or omissions committed by VENDOR or its employees; (C) is in connection with a criminal proceeding that does not relate to any action taken during the Event period; and/or (D) if the insurer issues / agrees to issue a certificate of indemnity / guarantee in favour of a Court of Dubai / police authority acceptable to the Courts of Dubai or the police authorities, undertaking to pay the said deposit. Provided further, if any insurer of either Party compensates VENDOR towards such deposit, then within 1 (one) day from the date of such compensation by the insurer to ARC, VENDOR shall refund all amounts received from the Insurer. Where any criminal proceeding is initiated against VENDOR in connection with the Event, VENDOR shall provide BCCL with prompt notice of the same.

16) **ASSIGNMENT**

Except as provided herein, this Agreement is for the personal services of VENDOR and may not be assigned by ARC, nor shall it be assignable by operation of law, without the prior written consent of BCCL, which consent BCCL may withhold in its sole discretion. BCCL may assign this Agreement and/ or any Schedule(s) and the Services to be performed by VENDOR to any person or entity.

17) **GOVERNING LAW & JURISDICTION**

a. The Parties agree for themselves, and each of their respective parent companies, shareholders and guarantors, and each their respective Affiliates, and each of the shareholders, trustees, beneficiaries, directors, officers, employees or agents of any of the foregoing, that all controversies, disputes, or claims between the Parties arising from or relating to this Agreement shall be subject to, and resolved in accordance with this Clause 17.

b. This Agreement, together with all Schedule(s) under this Agreement (and any dispute, difference, proceedings or claim of whatever nature arising out of or in connection with this Agreement and the Schedule(s)) shall be governed by, and construed in accordance with, the laws of Dubai and shall also be subject to the exclusive jurisdiction of Courts of Dubai.

c. The Parties agree that any judgment obtained in the Courts of Dubai may be enforced against the Party adverse in interest wherever the Party adverse in interest or its assets may be found without reference to conflict of laws provisions in the jurisdiction where the judgment is to be enforced.

18) **MISCELLANEOUS**

a. This Agreement together with all Schedule(s) represent the entire agreement between the Parties with respect to the subject matter hereof, and supersedes all previous representations, understandings or agreements, oral or written, between the Parties with respect to the subject matter hereof.

b. BCCL, in its sole discretion, may choose to have this Agreement executed by its appropriate signatory via facsimile or e-mail, which VENDOR acknowledges and agrees, shall in no way affect the validity or enforceability of this Agreement. Provided that BCCL shall no later than 7 (Seven) days of execution by facsimile signature deliver to VENDOR to original signed versions of this Agreement in order that VENDOR can countersign them and courier one original signed copy to BCCL.

c. The invalidity or unenforceability of any provision or portion of this Agreement shall not affect the validity or enforceability of any other provision or portion of this Agreement. If any term or provision of this Agreement is held invalid, illegal or unenforceable by a court of competent jurisdiction or arbitration panel for any reason, the remainder of this Agreement shall in no way be affected and shall remain valid and enforceable for all purposes. Notwithstanding the foregoing, if any part of Clauses 4, 5, 6, 12 or 13 shall be declared invalid, illegal or unenforceable for any reason, BCCL shall have the option, by giving written notice to VENDOR within 3 (Three) days thereafter, to terminate this Agreement, with no further duties or obligations to ARC.

d. If any Applicable Law requires a longer period for a notice of the termination of, or refusal to enter into this Agreement, than is required hereunder, a different standard of "good cause", or the taking of some other action not required hereunder, the prior notice, "good cause" standard and/or other action required by such Applicable Law shall be substituted for the comparable provisions in this Agreement. If any provision of this Agreement or any specification, standard or operating procedure is invalid, illegal or unenforceable under Applicable Law, the Parties shall modify such invalid, illegal or unenforceable provision, specification, standard or operating procedure to the extent required to make it valid, legal and enforceable.

e. Each Party shall bear its own legal costs incurred in the negotiation, preparation, completion and signing of this Agreement and all matters necessary and incidental thereto.

f. No waiver, express of implied, by either Party of any breach by the other of any of the provisions of this Agreement shall operate as a waiver of any preceding or succeeding breach of the same or any other provision of the Agreement.

g. Any notice required to be given under this Agreement by either Party shall be in writing and sent by prepaid first class registered post, courier, facsimile, e-mail or delivered by hand to the relevant Party at such address as may be notified by that Party to the other from time to time. Notice shall be deemed delivered on the earlier of actual receipt or on the date of personal delivery or 7 (Seven) days after being deposited in the mail of the other Party's country or 10 (Ten) days after being deposited in the mail of any other country.

h. Except as otherwise expressly provided in this Agreement, the remedies provided in this Agreement are cumulative and not exclusive of the remedies provided by Applicable Law, and a Party's exercise of any one or more remedies for any default shall not preclude the Party from exercising any other remedies at any other time for the same default.

i. Whenever a Party has expressly reserved in this Agreement, or otherwise is deemed to have, a right or the discretion to grant or withhold any consent or approval, or act or permit any action to be taken, then except as otherwise expressly provided in this Agreement, that Party shall have the right to make its decision or exercise its right or discretion in the manner it deems fit.

j. Subject to the obtainment of necessary approvals under applicable Indian laws, BCCL

shall have the right to set-off any amounts payable by BCCL to VENDOR against any amounts receivable by BCCL from ARC.

k. In the event of a conflict between this Agreement and the terms contained in any Schedule the provisions of the Schedule shall prevail.

l. Where in connection with the performance of any provisions of this Agreement, a Party is required to obtain the prior approval of a governmental authority under Applicable Law, such obligation shall be performed by such Party upon receipt of such relevant governmental approvals.

m. Neither this Agreement nor any of its terms or provisions may be amended, modified, changed, waived or discharged, except by an instrument in writing signed by the Parties.

IN WITNESS WHEREOF, the parties have caused this Agreement to be duly executed as of the day and year first above written.

MIRCHI MOVIES (INDIA) LIMITED	**360 VENDOR EVENT L.L.C**
Sign : _____	Sign : _____
Name: =	Name:
Title:	Title:
Witness 1: _____	Witness 1: _____
Witness 2: _____	Witness 2: _____

SCHEDULE 1
PART A: DEFINITIONS

"**VENDOR Authorized Bank Representatives**" shall mean Mr. Prem Kumar or any Person duly authorized by Mr. Prem Kumar in writing.

"**Affiliates**" shall mean in relation to any Party, a Person that (directly or indirectly) controls, is controlled by or is under the common control of such Party.

"**Agreed Venue**" shall mean Dubai International Stadium at Dubai Sports City, Dubai, UAE;

"**Applicable Law**" shall include any statute, law, regulation, ordinance, rule, judgment, rule of law, order, decree, clearance, approval, directive, guideline, policy, requirement, or other governmental restriction or any similar form of decision, or determination by, or any interpretation or administration of any of the foregoing by, any statutory or regulatory authority whether in effect as of the date of this Agreement or thereafter and in each case as amended including, for the avoidance of doubt, laws and regulations of the UAE applicable to the Event.

"**Approvals**" shall mean any consent, filings, license, approval, registration, permit or other authorization of any nature which is required to be granted by any statutory or regulatory authority or otherwise in United Arab Emirates for the performance of this Agreement and the conducting of the Event.

"**Business Days**" shall mean a day on which banks in Mumbai, India **and** Dubai, United Arab Emirates are open for normal banking business;

"**Contracts**" shall mean all contracts in writing that VENDOR is required to execute in relation to the Event (including Identified Contracts), as per the written instructions of BCCL.

"**Due Date**" shall mean in respect of:

(a) Fees, the date on which the Fees falls due in accordance with Clause 3 (a) (ii) of this Agreement; and
(b) Costs, where paid in relation to the Contracts, the due date for such payments under the Contracts as notified by BCCL to VENDOR from time to time in writing;
(c) Costs in connection with any other amounts payable by VENDOR or any other amount that fall due under this Agreement, the date as per mutual agreement of the Parties in writing

"**Event End Date**" shall mean March 18, 2016.

"**Event Start Date**" shall mean March 17, 2016 commencing 00:01 (hours).

"**Force Majeure**" shall mean any event (I) that is beyond the control of the parties such as but not limited to change in governmental regulation or order, strike, war, fire, or similar act of God, or by any other cause; and (ii) impairs, interferes with or prevents the occurrence of any Event related activity or obligation set forth here under, as applicable.

"**Intellectual Property Rights**" shall mean all legal rights, title or interest in, under or in respect of the following arising under Applicable Law, whether or not filed, perfected, registered or recorded, including all renewals: 1) all copyrights, copyright registrations, copyrightable works and all other corresponding rights including Times Marks; 2) all trademarks, trade names, service marks, service names, logos, or trade dresses; 3) all internet domain names and world wide web (www) URLs and internet addresses related exclusively to the Event and/or BCCL and its Affiliates; 4) know-how, key words, including literature, trade secrets and other documentation, and other proprietary documentation and information of every kind; 5) all databases and data collections; 6) all other proprietary rights; and 7) all copies and tangible embodiments of any of the foregoing (in whatever form or medium). It shall also include: 1) applications for registration and the right to apply for registration, for any of the same; and 2) trade secrets including sponsorship, marketing plans, Event layout, Event format, Event plan etc and revenue generation plans for the Event, artist and performer lists, invitee lists and related

information, if any.

"**Identified Approvals**" shall mean the approvals enumerated in **Schedule 6** hereto.

"**Identified Contracts**" shall mean the contracts enumerated in **Schedule 6** hereto.

"**Indemnified Party**" shall mean BCCL Indemnified Party and/or VENDOR Indemnified Party, as the case may be.

"**BCCL Authorized Representatives**" shall mean the Persons duly authorized by the board of directors of BCCL to execute and implement Event related activities on behalf of BCCL and shall include all Directors of BCCL.

"**Notified Bank Account**" shall mean the Dirham denominated bank account set up by VENDOR with Citi Bank (Insert bank name), Al Wasl Branch, Dubai - UAE (branch) and bearing the details set forth under **Schedule 5** hereto.

"**Person**" shall mean any individual, corporation, partnership, (including, without limitation, association), joint stock company, trust, unincorporated organization or government authority or political subdivision thereof.

"**Proprietary Rights**" shall mean all Intellectual Property Rights relating to the Event including content, works and performances forming a part of the Event and shall include the right to the Times Marks.

"**Tax Documents**" shall mean: (1) a tax domicile certificate from the UAE Ministry of Finance in the name of ARC; (2) executed Form 10-F; and (3) no permanent establishment certificate in a format satisfactory to BCCL.

"**Times Marks**" shall mean all brand names, trade names, service marks and trademarks owned or used by BCCL and/or its Affiliates (whether registered or not) including the marks "Times of India Film Awards" and "TOIFA" or "TOIFA 2016" or any permutations or combination of the foregoing, without any reference to classes.

"**UAE**" means the United Arab Emirates.

SCHEDULE 1
PART B: INTERPRETATION

1. The preamble to this Agreement constitutes an integral and inseparable part of this Agreement.

2. Reference to statutory provisions shall be construed as meaning and including references also to any amendment or re-enactment for the time being in force and to all statutory instruments or orders made pursuant to such statutory provisions.

3. Whenever the context may require, any pronoun and variations of any such pronoun shall include the corresponding singular, plural, masculine, feminine, and neuter forms.

4. Headings, subheadings, titles, subtitles to clauses, sub-clauses and paragraphs are for information only and shall not form part of the operative provisions of this Agreement or the schedules hereto and shall be ignored in construing the same.

5. References to days, months and years are to calendar days, calendar months and calendar years, respectively. References to days, months and years shall be deemed to be references to days, months and years of the Gregorian calendar.

6. Whenever any payment is to be made or action to be taken under this Agreement is required to be made or taken on a day other than a Business Day, such payment shall be made or action taken on the immediately succeeding Business Day.

7. Any reference to “writing” shall include printing, typing, lithography or transmissions by facsimile and other means of reproducing words in visible form including electronic-mails but excluding text messages via mobile phones.

8. The terms and provisions of this Agreement shall not be construed against or in favour of a Party hereto merely because such Party is the principal hereunder or such Party or its counsel is the drafter of this Agreement.

9. The words "will," "shall," and "must" in this Agreement indicate a mandatory obligation.

10. The use of the words "include," "includes," and "including" followed by one or more examples is intended to be illustrative and is not a limitation on the scope of the description or term for which the examples are provided.

11. The words “hereof”, “hereto” and “herein” refer to this Agreement, and are not limited to the article, section, paragraph or clause in which such words are used.

12. Time is of the essence for all purposes of this Agreement.

13. Wherever there is a reference to directions, instructions, approvals or any other correspondence by the Parties under this Agreement, the same shall only be acted upon if provided in writing. For the purposes of this Agreement, an instruction in writing will also include instructions provided over electronic mails.

SCHEDULE 2
SCOPE OF SERVICES

SCHEDULE 3
SERVICE LEVELS

SCHEDULE 4
FEE PAYMENT SCHEDULE

SCHEDULE 5
DETAILS OF NOTIFIED BANK ACCOUNT

SCHEDULE 6
PART A: IDENTIFIED CONTRACTS

PART B: IDENTIFIED APPROVALS

SCHEDULE 7
LIST OF ENGAGED PERSONNEL

SCHEDULE 8
FORMAT OF WAIVER AND RELEASE UNDERTAKING

(Intentionally Left Blank)

SIGNED by)
duly authorised for and on behalf)
of 360 VENDOR Event L.L.C

DATE & PLACE)

WITNESS 1)

WITNESS 2)

SCHEDULE 9
INDICATIVE LIST OF TIMES COMPETITOR